



DECISION

Complaint No. : POS/3011/KE-377/25

Name and Address of the Complainant : Mr. Kamran Khan, House No. 356, Tilak Street Gunj Shakar Colony, Jamshed Road No. 01, Karachi.

Name of the Agency Complained against : Directorate of Inspection & Registration of Private Institutions Sindh (DIRPIS)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED INACTION ON COMPLAINTS REGARDING FORCIBLE COLLECTION OF RS.11,250/- AS TUITION FEE FOR THE MONTHS OF JUNE AND JULY 2025 BY THE SMART SCHOOL, JAMSHED ROAD CAMPUS-II.**

THE COMPLAINT

Mr. Kamran Khan, filed a complaint on 15.05.2025, contending that The Smart School, Jamshed Road Campus-II unlawfully collected an amount of Rs.11,250/- as tuition fee for the months of June and July 2025 from him in respect of his daughter, Miss Hooriya Khan, who had already appeared in the matriculation examination held on 08.04.2025. He asserted that the said collection was in clear violation of Circular dated 23.12.2024 issued by the Directorate of Inspection & Registration of Private Institutions Sindh (DIRPIS), which prohibits private schools from charging tuition fees for months falling after a student has appeared in the matriculation examination. It was further stated that prior to approaching this Office, the complainant had approached the DIRPIS but of no avail.

PROCEEDINGS

2. After admission of the complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended), and upon receipt of the mandatory affidavit on Form "A" along with relevant documents, comments were called from the Agency. In response, the Deputy Director, Directorate of Registration and Inspection of Private Institutions, Karachi Region, furnished copy of letter dated 20.06.2025, directing the School to refund the tuition fee for the months of May, June, and July 2025 to the complainant.

3. The Principal of The Smart School, vide letter dated 27.06.2025, contended that since the academic session 2024-25 commenced in August 2024 and constituted a twelve-month session ending in July 2025, the School was justified in charging fees for May, June, and July 2025. It further stated that schools commencing sessions in April do not charge such fees as they already receive twelve months' fees from April to April.

4. During proceedings, the complainant informed vide letter dated 12.01.2026 that pursuant to the hearing held on 29.12.2025, he approached the School as advised. Although the School issued the mark sheet of his daughter on 09.01.2026, but was reluctant to refund the disputed tuition fee. Subsequently, the complainant confirmed vide letter dated 19.01.2026 that the School has refunded the amount of Rs.11,250/- pertaining to the months of June and July 2025 through cash payment on 16.01.2026.

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5. The Deputy Director, Directorate of Registration and Inspection of Private Institutions, Karachi Region, also confirmed vide letter dated 13.01.2026 that the mark sheet of Miss Hooriya Khan, Grade X (Batch 2024-25), was issued on 08.01.2026.

FINDINGS

6. It is an admitted position that the complainant's daughter appeared in the matriculation examination in April 2025. The Government Circular dated 23.12.2024 unequivocally restrains private schools from charging tuition fees for any period subsequent to the matriculation examination. The explanation advanced by the School regarding its internal academic calendar does not supersede or dilute the binding nature of Government instructions, which are uniformly applicable to all private educational institutions. The initial failure of the School to comply with the directions of the Directorate, coupled with the threat of withholding the admit card and the delay in refunding the unlawfully charged fee, constitutes maladministration and caused avoidable harassment to the complainant. However, it is also on record that the disputed amount of Rs.11,250/- has eventually been refunded to the complainant and the mark sheet of his daughter has also been issued.

DECISION

7. In view of the above, the complaint stands disposed of as redressed.

Given under my hand and seal of the office



Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 03rd. 03, 2026